



County Commissioners Meeting November 20th 2023

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=hh5DuHgVis8
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Delaware County Commissioners Meeting Report

Meeting Date: November 20, 2023

Report Publication Date: October 24, 2023

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer Ed opened the Delaware County Commissioners meeting on Monday, November 20, 2023, at 9:05 AM with the Pledge of Allegiance [00:08:51](#).
- **Attendance:**
 - **Members Present:** Mr. King, Mr. Reagan, Mr. Henry (Presiding Officer Ed).
 - **Members Absent:** None explicitly noted, though a reference is made to Mr. Brooke not being present during discussion [03:07:05](#).
 - **Presiding Officer:** Mr. Henry (Ed).

3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance [00:08:55](#).
- **Approval of Minutes:** The minutes from the November 6, 2023 commissioners' meeting were approved by roll call vote [011:18].

4. Substantive Business & Board Action

- **00:09:36 Appointment to the Public Defender Board**
 - **Sponsor / Presenter:** Board Commissioners / Opening agenda.
 - **Deliberation Summary:** Dan Gibson was recommended to fill an open position on the public defender board. Discussion briefly touched on whether the appointment was a four-year or one-year term, with staff noting they would check the details.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Mr. King: yes, Mr. Reagan: yes, Mr. Henry: yes) [00:09:56](#).
- **00:10:04 Appointment to the Airport Authority**
 - **Sponsor / Presenter:** Board Commissioners.
 - **Deliberation Summary:** Steve Slaven was nominated to fill the seat previously held by Dr. Alexander, who passed away. Commissioners praised Dr. Alexander's instrumental service on the committee.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Mr. King: yes, Mr. Reagan: yes, Mr. Henry: yes) [00:10:19](#).
- **00:10:35 Appointment to the Animal Control Board**
 - **Sponsor / Presenter:** Board Commissioners.
 - **Deliberation Summary:** Nikki Kirby was nominated to fill the animal control board position, replacing Mr. Turner who served for nine years. Commissioners noted she has a background in loving and helping animals and confirmed a veterinarian background is not required.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Mr. King: yes, Mr. Reagan: yes, Mr. Henry: yes) [00:11:11](#).
- **00:11:32 Contracts and Agreements: Renewal of Thomson Reuters Contract**
 - **Sponsor / Presenter:** Emily Anderson, Court Administrator.
 - **Deliberation Summary:** Emily Anderson presented the contract renewal for Thomson Reuters law books utilized by the judges. She successfully negotiated a five-year renewal package to secure lower pricing, which is already accounted for in the upcoming budget.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Mr. King: yes, Mr. Reagan: yes, Mr. Henry: yes) [00:12:08](#).
- **00:12:27 Ordinance No. 2023-XX / Solar Energy Systems Zoning Ordinance & Acreage Cap**
 - **Sponsor / Presenter:** Board Commissioners, Danielle (Staff), Cynthia Bowen (Rundell Ernstberger and Associates), and planning committee members.

- **Deliberation Summary:** Extensive, highly contentious deliberation concerning the county solar energy zoning ordinance, specifically focusing on acreage caps and land use limitations. The planning committee originally recommended a 2% cap (~3,400<U+2013>3,500 acres) based on farmland estimates, while the plan commission altered the figure to a 35,000-acre cap in the draft text. Commissioners debated capping the acreage at 5,000 acres to match electrical grid infrastructure limits and prevent widespread agricultural conversion, discussing whether to adopt immediately or send back to the Plan Commission. Consultants warned of vesting issues if old ordinances expired without a moratorium. Ultimately, a motion was made to accept the planning commission's amendments with the exception of Section 8(B) land use limitations, capping the maximum acreage devoted to solar farms under panels at 5,000 acres.
 - **Item-Specific Public Input:** Tim Nickam (Solar Study Committee member) testified regarding grid capacity limitations of roughly 5,000 acres and upcoming battery storage park pressures [025:54].
 - **Action & Vote Disposition:** Approved as amended (5,000-acre cap exception) by Roll Call Vote (Mr. King: yes, Mr. Reagan: no, Mr. Henry: yes) 00:48:33.
- 00:48:58 **Resolution No. 2023-26: Public Defender Staff Key Fobs & Courtroom Access**
 - **Sponsor / Presenter:** Danielle / Court Administration.
 - **Deliberation Summary:** Danielle noted that discussions over the weekend indicated progress between court administration and judges regarding key fob access for public defender staff. It was requested to table the item to allow finalization of a resolution.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Tabled by Roll Call Vote (Mr. King: yes, Mr. Reagan: yes, Mr. Henry: yes) 00:50:06.
- 00:50:22 **Department Heads / Elected Officials: Asphalt Materials Contract Extension**
 - **Sponsor / Presenter:** Carrie, County Highway.
 - **Deliberation Summary:** Carrie presented a request from Nate at Asphalt Materials to extend the existing asphalt supply contract, locking in current 2023 pricing for the 2024 year to combat rising costs.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Mr. King: yes, Mr. Reagan: yes, Mr. Henry: yes) 00:50:54.
- 00:51:16 **Payment of Claims**
 - **Sponsor / Presenter:** County Administration.
 - **Deliberation Summary:** Review and approval of claims totaling \$1,121,182.42.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Mr. King: yes, Mr. Reagan: yes, Mr. Henry: yes) 00:51:30.

5. Open Public Comment / Citizen Forum

- **00:52:19 Linda Hansen**
 - Spokesperson for the League of Women Voters; thanked the commissioners for their work and consideration of public comments regarding the solar ordinance.
- **00:52:49 Robert Shroyer**
 - Expressed confusion over the complex financial and liability restrictions placed on solar companies compared to typical manufacturing “widget” companies, and commented on agricultural land productivity versus wind/solar uses and county property usage (shooting range).
- **00:65:25 John Taylor**
 - Former study committee member; clarified that his previous feedback intended to request larger setbacks around human residents (who “have feelings”) rather than property lines.
- **00:57:25 Eric Bear**
 - Expressed concern over the “dwindle-down effect” that removing farm ground has on small local businesses, co-ops, and daily patronage in rural Gaston, as well as aesthetic and property right concerns.
- **01:07:07 Sue Arrington**
 - Thanked commissioners for moving forward, questioned acreage distribution equity, criticized the 500-foot property line setback as overly restrictive compared to state legislative recommendations, and noted state solar-ready incentive programs.
- **01:04:37 Jeff Stevens**
 - Lifelong Gaston area farmer/landowner; spoke in favor of solar agreements as a private property right for families who have invested millions in land, arguing that 500-foot setbacks effectively eliminate viable project acreage (e.g., on 40-acre tracts).
- **01:07:21 Cheryl Swingley**
 - Addressed the board regarding opposition to the 500-foot property line setbacks, noting that many residents are deeply concerned about setbacks just as much as acreage caps, and suggested tracking lease recordings.
- **01:09:37 Daniel Straat**
 - Representing the Land and Liberty Coalition; advocated for private property rights and renewable energy, stating Delaware County’s acreage caps and 500-foot setbacks are among the most restrictive ordinances he has seen across the state.
- **01:12:34 Christina Wheeler**
 - Attorney with Bose McKinney & Evans representing Invenergy; raised serious legal concerns regarding retroactively changing rules mid-project when developers have already signed economic development, tax abatement, and road use agreements in good faith.

- **01:15:48 Brian Richards**
 - Local farmer; presented calculations on potential agricultural yield losses (corn, cereal, ethanol, distiller grains) resulting from acreage conversions, and argued solar facilities function more as industrial power generation businesses than traditional farms.
- **01:19:07 Harold King**
 - Expressed concern that solar projects are net economic losers over a 30-year span when accounting for tax losses, and praised the board for listening to citizens.
- **01:21:23 Tim Nickam**
 - Solar study committee member; detailed the committee's prior work toward a 2% compromise cap based on grid limits, expressed frustration that planning commission changes discarded citizen protections, and suggested exploring community-scale solar on Brownfields instead.
- **01:30:08 Cody Light**
 - First-generation farmer; argued that property rights must protect both parties, compared solar placement restrictions to livestock CAFO setbacks, and raised questions regarding tax revenue projections and study committee conflicts of interest.
- **01:28:11 Victoria Gasaway**
 - Local resident; discussed historical landowner approaches by solar companies, federal vehicle electrification mandates driving demand, housing market demand conflicts per comprehensive plans, and discrepancies in tax abatement environmental disclosures.
- **01:31:52 Britney Moody**
 - Gaston resident; voiced concerns about being surrounded by industrial solar panels, argued for strict protections for non-participating neighbors, and asserted that if property rights allow solar, livestock CAFO moratoriums should similarly be lifted.

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:** None explicitly detailed other than future planning commission procedural timing and moratorium extensions discussed during the ordinance debate.
- **Adjournment:** A motion to recess/adjourn was made and approved by roll call vote (Mr. King: yes, Mr. Reagan: yes, Mr. Henry: yes) **01:34:38**.